



POLICE DEPARTMENT

May 17, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208201 (Incident Date: November 26, 2022) regarding Police Officer Ryan Hennessy, Tax No. 971991 (DADS No. 2024-29894)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208201, pertaining to Police Officer Ryan Hennessy. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Hennessy would be detrimental to the Police Department's disciplinary process.

The Police Commissioner agrees with the CCRB's determination to substantiate the allegations. However, the Police Commissioner does not agree with the application of the Department's Disciplinary Penalty Guidelines. The Police Commissioner has determined that charges and specifications are not the appropriate form of discipline. The Police Commissioner has determined to use the presumptive penalties for the misconduct, and run them concurrently. Police Officer Hennessy's disciplinary record reveals no prior substantiated CCRB's and no prior formal Department disciplinary history.

As provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline for the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

May 21, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202208201 (Incident Date: November 26, 2022) regarding Police Officer Ryan Hennessy, Tax No. 971991 (DADS No. 2024-29894)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 17, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”).

Deputy Chief Marino stated that after reviewing the CCRB’s recommended penalty, you determined that to pursue said charges against PO Hennessy would be detrimental to the Police Department’s disciplinary process. Consequently, you concluded that, while agreeing with the CCRB’s determination, you would instead direct the issuance a Schedule “A” Command Discipline along with concurrent, presumptive penalties in connection with the substantiated allegations, citing PO Hennessy’s lack of prior NYPD or CCRB disciplinary history.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, it is respectfully requested that you permit the CCRB to continue the disciplinary process against PO Hennessy.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 22, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208201 (Incident Date: November 26, 2022) regarding Police Officer Ryan Hennessy, Tax No. 971991 (DADS No. 2024-29894)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 21, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Ryan Hennessy. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Hennessy for the reasons expressed in my May 17, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline for the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office